

25PSCV01105 25PSCV01105

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-09

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Case Number: 25PSCV01105 Hearing Date: July 9, 2026 Dept: H

Serrano v. El

Super, Case No.

25PSCV01105

ORDER ON MOTIONS TO COMPEL

1. The Court construes Defendant Chedraui

USA, Inc.'s (erroneously named as Bodega Latina Corporation dba El Super) unopposed Motion to Compel Responses to Request for Admissions, Set One as a Motion for Order Deeming Requests for Admissions, Set One Admitted. Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the Court orders the truth of the matters specified in the Requests for Admission, Set No. One, propounded by Defendant to Plaintiff deemed admitted. Sanctions are awarded in the reduced amount of \$285.00 and are payable within 20 days from the date of the notice of ruling.

2. Defendant Chedraui USA, Inc.'s

(erroneously named as Bodega Latina Corporation dba El Super) unopposed Motion to Compel Responses to Form Interrogatories, Set One is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$285.00 and are payable within 20 days from the date of the notice of ruling.

3. Defendant Chedraui USA, Inc.'s

(erroneously named as Bodega Latina Corporation dba El Super) unopposed Motion to Compel Responses to Special Interrogatories, Set One is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Special

Interrogatories, Set One, within 20 days from the date of the notice of ruling.
Sanctions are awarded in the reduced amount of \$285.00 and are payable within 20 days from the date of the notice of ruling.

4. The Court is inclined to grant Defendant USA, Inc.'s (erroneously named as Bodega Latina Corporation dba El Super) unopposed Motion to Compel Responses to Requests for Production of Documents, Set One, provided that Defendant files a proof of service of the amended motion at or before the time of hearing, demonstrating that Plaintiff was provided Code of Civil Procedure section 1005, subdivision (b) compliant notice of the amended motion (see footnote #1).

Background

Plaintiff

Guadalupe Lara Serrano ("Plaintiff") alleges that she sustained injuries after she was harassed, chased, and pepper sprayed by a security guard at the El Super grocery store in Pomona.

On

March 27, 2025, Plaintiff filed a complaint, asserting causes of action against Chedraui USA, Inc. (erroneously named as Bodega Latina Corporation dba El Super) ("Defendant") and Does 1-25 for: (1) General Negligence and (2) Intentional Tort.

A Case

Management Conference and an Order to Show Cause Re: Sanctions up to \$1,500 Pursuant to CCP Section 177.5 for Plaintiff's Failure to Appear on May 4, 2026 or in the Alternative to Dismiss the Case for Failure to Prosecute and Abandonment are set for July 9, 2026.

Notice

Pending

before the Court are four discovery motions filed by Defendant. At the outset, the Court addresses whether the motions were properly and timely served upon Plaintiff.

On

February 3, 2026, a "Substitution of Attorney" was filed, wherein attorney

James P. Gutierrez ("Gutierrez") substituted out as Plaintiff's attorney of record and Plaintiff became self-represented; the accompanying proof of service reflects that notice was mail served that day to Plaintiff and to Defendant's counsel Bryan Aghakhani.

Motions

#2 and #3 were filed (and electronically served to Gutierrez) on February 19, 2026 and originally set for hearing on July 8, 2026 and July 9, 2026, respectively. Motion #1 was filed on February 23, 2026 (electronically served to self-represented Plaintiff on February 20, 2026) and set for hearing on July 7, 2026. Motion #4 was filed on February 25, 2026 (electronically served to Gutierrez on February 23, 2026) and set for hearing on July 7, 2026.

On

February 19, 2026, Defendant filed a proof of service, which reflected that self-represented Plaintiff was mail-served that day with Motions #1-3 and the original Motion #4.

On

March 5, 2026, the Court issued a "Notice Re: Continuance of Hearing and Order" ("Notice"), wherein the July 7, 2026 hearing on Motions #3 and #4 and the July 8, 2026 hearing on Motion #2, respectively, were reset to July 9, 2026; notice was given to Defendant's counsel and to Gutierrez only. On April 1, 2026, Defendant filed (and mail served) a "Notice of Ruling Re: Continuance of Hearing and Order" ("Notice of Ruling"), advising therein that the July 7, 2026 hearing on Motions #3 and #4 had been reset to July 9, 2026; while the Notice of Ruling did not specifically address Motion #2 (i.e., which had originally been set for hearing on July 8, 2026), it did attach a copy of the Court's March 5, 2026 Notice.

Based

on the above, Plaintiff was provided sufficient notice with respect to Motions #1-3; however, it is unclear whether Plaintiff was given notice of amended Motion #4. Defendant is ordered to provide proof of service of amended Motion #4 at or before the time of hearing.

1.

Motion to Deem Requests for Admissions Admitted

Legal

Standard

A

response to requests for admission is due within 30 days after service. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. . . .” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. . . .” (Code Civ. Proc., § 2033.280, subd. (c).)

“It is

mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to serve verified responses, without objections, to Defendant’s Request for Admission, Set One. Defendant also seeks sanctions against Plaintiff in the amount of \$1,185.00.

Defendant’s

counsel Mark Derflinger (“Derflinger”) represents, and/or the accompanying exhibits reflect, as follows:

On

September 22, 2025, the subject discovery was served. (Derflinger Decl., ¶ 2, Exh. A.) On November 12, 2025, Derflinger’s office sent an email to Plaintiff’s then-counsel, advising therein that responses were overdue and requesting objection-free responses by November 17, 2026. (Id., ¶ 3, Exh. B.) On November 26, 2025, Derflinger’s office sent a follow-up email to Plaintiff’s then-counsel, advising that a motion would be filed; that day, then-counsel advised that the paralegal had a medical emergency and that he would get Defendant’s counsel the answers “as soon as possible.” (Id., ¶ 4, Exh. B.) To date, Plaintiff has failed to respond to the subject discovery or make any additional requests

for extension. (Id., ¶ 6.)

At the outset, the Court observes that there is no mechanism for a “Motion to Compel Responses to Request for Admissions” in the Discovery Code [FN]; as such, the Court construes the instant motion as a Motion for Order Deeming Requests for Admissions, Set One Admitted.

The unopposed motion is granted. Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the Court orders that the truth of the matters specified in the Requests for Admission, Set No. One, propounded by Defendant to Plaintiff be deemed admitted.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$1,185.00 [calculated as follows: 2 hours preparing motion, plus 1 hours preparing reply, plus 2 hours attending hearing at \$225.00/hour, plus \$60.00 filing fee].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$285.00 (i.e., 1 hour attorney time at \$225.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

2. Motion

to Compel Form Interrogatories

Legal

Standard

A response to interrogatories is due within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) “If a party to whom interrogatories are directed fails to serve a timely response, . . . [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (Code Civ. Proc., § 2030.290, subd. (b).)

“The court shall impose a monetary sanction .

. . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust . . .” (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to serve verified responses, without objection, to Defendant’s Form Interrogatories, Set One. Defendant also seeks sanctions against Plaintiff in the amount of \$1,185.00.

See

synopsis of Motion #1.

The unopposed motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant’s Form Interrogatories, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$1,185.00 [calculated as follows: 2 hours preparing motion, plus 1 hours preparing reply, plus 2 hours attending hearing at \$225.00/hour, plus \$60.00 filing fee].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$285.00 (i.e., 1 hour attorney time at \$225.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

3.

Motion to Compel Special Interrogatories

Legal

Standard

See

Motion #2.

Discussion

Defendant

moves the Court for an order compelling Plaintiff to serve verified responses, without objection, to Defendant's Special Interrogatories, Set One. Defendant also seeks sanctions against Plaintiff in the amount of \$1,185.00.

See

synopsis of Motion #1.

The unopposed motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Special Interrogatories, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$1,185.00 [calculated as follows: 2 hours preparing motion, plus 1 hours preparing reply, plus 2 hours attending hearing at \$225.00/hour, plus \$60.00 filing fee].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$285.00 (i.e., 1 hour attorney time at \$225.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

4.

Motion to Compel Requests for Production

Legal

Standard

A

response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).)

"[T]he

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to serve verified responses, without objection, to Defendant's Requests for Production of Documents, Set One. Defendant also seeks sanctions against Plaintiff in the amount of \$1,185.00.

At the

outset, the below ruling is contingent upon Defendant's counsel providing proof that Plaintiff was provided Code of Civil Procedure section 1005, subdivision (b) compliant notice of the amended motion (see footnote #1):

See

synopsis of Motion #1.

The unopposed motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Requests for Production of Documents, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$1,185.00 [calculated as follows: 2 hours preparing motion, plus 1 hours preparing reply, plus 2 hours attending hearing at \$225.00/hour, plus \$60.00 filing fee].

Utilizing a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$285.00 (i.e., 1 hour attorney time at \$225.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

[FN] The Court also observes that Defendant has failed to cite to the appropriate statutory authority for this motion, instead repeatedly referencing Code of Civil Procedure section 2030.290, which pertains to interrogatories.